

25NNCV08622 25NNCV08622

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CA%2C08%2F21%2F2026

Source SHA-256: 99b21d7cb841af641502d47dc9df2521128f49b69690d4c50a2b8647b8e735eb

Case Number: 25NNCV08622 Hearing Date: August 21, 2026 Dept: A

TENTATIVE RULING

AUGUST 21, 2026

MOTION TO DISMISS

Los

Angeles Superior Court Case # 25NNCV08622

MP: Defendant

Hlib Kryvonosov

RP: No opposition

filed

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at
or by telephone at (818) 260-8412.

ALLEGATIONS:

Bassam Shallhoob ("Plaintiff") alleges

that on August 5, 2025, he entered into a written contract with Hlib Kryvonosov ("Defendant"). He alleges that Defendant delivered a 2016

Land Rover Range Rover Sport vehicle to Plaintiff's auto facility and

authorized Plaintiff to provide services pursuant to the Burbank Advanced

Diagnostics estimate, including inspection, towing, repairs, and storage. (FAC, Ex. A.)

Plaintiff alleges that he performed the services and provided Defendant

with an invoice, but Defendant failed to pay the amount due despite

demand. Plaintiff alleges he suffered

\$38,763 in damages for towing, inspection fee, hazardous waste, dolly fee, shop

supplies, after-hour gate charge, and daily storage fees.

The First Amended Complaint ("FAC"), filed June 11, 2026,

alleges a single Breach of Contract claim.

MOTION ON CALENDAR:

On May 6, 2026, Defendant filed a Motion to Dismiss Plaintiff's Action as to Defendant Per

C.C.P. § 581(f)(2). The Court is not in

receipt of an opposition brief.

LEGAL

STANDARD

C.C.P. § 581(f)(2) states:

(f) The court may dismiss the complaint

as to that defendant when:

...

(2) Except

where Section 597 applies, after a demurrer to the complaint is sustained with

leave to amend, the plaintiff fails to amend it within the time allowed by the

court and either party moves for dismissal.

(C.C.P. § 581(f)(2).)

“A motion to dismiss the entire action and for entry of judgment after expiration of the time to amend following the sustaining of a demurrer may be made by ex parte application to the court under Code of Civil Procedure section 581(f)(2).” (CRC Rule 3.1320(h).)

ANALYSIS:

Defendant moves

to dismiss this action and enter judgment in his favor on the ground that Plaintiff failed to amend his initial complaint within 30 days of March 27, 2026 as ordered by the Court in its minute order on Defendant's demurrer to the initial complaint.

On June 11, 2026, the Court granted the parties' Stipulation and Proposed Order Permitting Plaintiff to File First Amended Complaint, allowing Plaintiff to file a corrected FAC and to vacate Plaintiff's Motion for Relief. That same day, Plaintiff's FAC was filed.

In light of the Stipulation and Order, this motion is moot as the parties stipulated and agreed that the FAC could be filed five court days after the Court entered an order approving the parties' stipulation. The motion is taken off-calendar.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant Hlib

Kryvonosov's Motion to Dismiss Plaintiff's Action as to Defendant Per C.C.P. §

581(f)(2) came on regularly for hearing on August 21, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE

MOTION TO DISMISS PLAINTIFF'S ACTION IS TAKEN OFF-CALENDAR IN LIGHT OF THE PARTIES' JUNE 11, 2026 STIPULATION AND ORDER ALLOWING THE FILING OF THE FIRST AMENDED COMPLAINT.

defendant

TO GIVE NOTICE.

IT IS SO ORDERED.